

25CV03595 Matthew Stahl v. State of California Department of Parks & Recreation

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-08-05

Motion: Defendant State of California Department of Parks & Recreation's Demurrer to Plaintiff's Second Amended Complaint

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Tentative Ruling: Matthew Stahl v. State of California Department of Parks & Recreation

Case Number

25CV03595

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 08/05/2026 - 10:00

Nature of Proceedings

Defendant State of California Department of Parks & Recreation's Demurrer to Plaintiff's Second Amended Complaint

Tentative Ruling

For Plaintiff Matthew Stahl: F. Javier Trujillo, Andrew Echavarria, Law Office of F. Javier Trujillo Inc.

For Defendant State of California by and through the Department of Parks & Recreation: Quintin Lucas, Victoria Nelson, California Attorney General's Office

RULING

For the reasons set forth below, the demurrer to Plaintiff's second amended complaint is sustained without leave to amend.

Background

This action commenced on June 10, 2025, by the filing of the original complaint by Plaintiff Matthew Stahl against Defendants State of California, County of Santa Barbara, and City of Goleta.

On February 4, 2026, Plaintiff filed his first amended complaint ("FAC") against State of California for dangerous condition of public property.

Plaintiff alleged that on September 9, 2024, he was a business invitee of Defendant at El Capitan State Beach Park when he was injured as the result of walking to the beach on an unsafe walkway.

Defendant, State of California by and through the Department of Parks & Recreation (the "State") demurred to the FAC and argued that it is immune from liability pursuant to Government Code section 831.4.

On June 3, 2026 the demurrer was sustained with leave to amend.

On June 10, 2026, Plaintiff filed his second amended complaint ("SAC"). By way of the SAC, Plaintiff alleges:

On September 9, 2024, Plaintiff was not recreating at the time of the incident but was volunteering in a beach clean-up event and picking up trash at El Capitan State Beach Park. (SAC, ¶ 8.) El Capitan State Beach Park is publicly owned property that is owned, operated, maintained, and controlled by the State. (SAC, ¶ 9.)

At all relevant times, the State owned, operated, maintained, established, and adopted various safety regulations regarding improved wheelchair and pedestrian access routes from the parking lot to the beach area. (SAC, ¶ 10.) The State required that wheelchair ramps and pedestrian walkways within the park be constructed and maintained in compliance with safety rules, codes, and accessibility requirements adopted to protect park users, but the State failed to do so. (SAC, ¶ 11.) At the time of Plaintiff's injury, the ramp/walkway contained hazardous features, including excessive running slope and cross-slope, abrupt vertical level changes, and edge conditions that created a foreseeable risk of loss of balance and falls. (Ibid.)

The ramp/walkway was used by members of the public, including persons with mobility limitations, and the State knew, or should have known, that users would traverse it in ordinary course to reach the beach. (SAC, ¶ 13.) The walkway violated several sections of the Building Code and prior to the date of the incident the State had received reports of prior falls and loss-of-balance incidents at or near the same ramp. (SAC, ¶¶ 14-17.) The State did not take protective measures or post warnings of the hazardous conditions. (SAC, ¶¶ 19-22.)

Plaintiff was using the wheelchair ramp to walk from the parking lot to the beach and, while walking down the ramp, lost his balance when his foot landed at the edge of the non-code-compliant walkway and fell. (SAC, ¶¶ 24, 25.)

The State demurs to the SAC, again arguing that it is immune from liability pursuant to Government Code section 831.4.

Plaintiff opposes the motion arguing that trail immunity does not apply because the walkway is not a recreational trail and that trail immunity does not apply because Plaintiff was a volunteer rather than a recreational participant. Both arguments, although phrased differently, were addressed in the ruling on the demurrer to Plaintiff's FAC.

Analysis

Request for Judicial Notice

In opposition to the demurrer, Plaintiff requests that this Court take judicial notice of documents. The request is a total of 134 pages, and includes 20 documents, most of which are excerpts from California State Parks, the Department of Justice, and press releases. Plaintiff also requests the Court to take judicial notice of Government Code section 11135, which pertains to discrimination.

"Judicial notice may be taken of the following matters to the extent that they are not embraced within Section 451:

"(a) The decisional, constitutional, and statutory law of any state of the United States and the resolutions and private acts of the Congress of the United States and of the Legislature of this state.

"(b) Regulations and legislative enactments issued by or under the authority of the United States or any public entity in the United States.

"(c) Official acts of the legislative, executive, and judicial departments of the United States and of any state of the United States.

"(d) Records of (1) any Court of this state or (2) any Court of record of the United States or of any state of the United States.

"(e) Rules of Court of (1) any Court of this state or (2) any Court of record of the United States or of any state of the United States.

"(f) The law of an organization of nations and of foreign nations and public entities in foreign nations.

"(g) Facts and propositions that are of such common knowledge within the territorial jurisdiction of the Court that they cannot reasonably be the subject of dispute.

"(h) Facts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy." (Evid. Code, § 452.)

"The trial Court shall take judicial notice of any matter specified in Section 452 if a party requests it and:

"(a) Gives each adverse party sufficient notice of the request, through the pleadings or otherwise, to enable such adverse party to prepare to meet the request; and

"(b) Furnishes the Court with sufficient information to enable it to take judicial notice of the matter." (Evid. Code, § 453.)

"[J]udicial notice of a document does not extend to the truthfulness of its contents or the interpretation of statements contained therein, if those matters are reasonably disputable. [Citations.] Our Supreme Court noted this limitation in *StorMedia Inc. v. Superior Court* (1999) 20 Cal.4th 449, 84 Cal.Rptr.2d 843, 976 P.2d 214 (*StorMedia*), explaining: " 'In ruling on a demurrer, a Court may consider facts of which it has taken judicial notice. (Code Civ. Proc., § 430.30, subd. (a).) This includes the existence of a document. When judicial notice is taken of a document, however, the truthfulness and proper interpretation of the document are disputable. [Citation.] . . . ' " [Citation.]" (*Apple Inc. v. Superior Court* (2017) 18 Cal.App.5th

222, 241.)

"The hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the Court take judicial notice of documents whose truthfulness or proper interpretation are disputable." (Fremont Indemnity Co. v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 114 (Fremont).)

Plaintiff is attempting to turn the demurrer into a contested evidentiary hearing. The Court has thoroughly reviewed all of the documents. While the Court will take judicial notice of them, because the State did not object, the Court does not find any of the documents relevant in ruling on the demurrer. None of the documents have any tendency to show that trail immunity does not apply to Plaintiff's SAC.

Demurrer

"When any ground for objection to a complaint, cross-complaint, or answer appears on the face thereof, or from any matter of which the Court is required to or may take judicial notice, the objection on that ground may be taken by a demurrer to the pleading." (Code Civ. Proc., § 430.30, subd. (a).) "Our consideration of the facts alleged includes 'those evidentiary facts found in recitals of exhibits attached to [the] complaint.' [Citation.]" (Alexander v. Exxon Mobil (2013) 219 Cal.App.4th 1236, 1250.)

"The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of the following grounds:

"(a) The Court has no jurisdiction of the subject of the cause of action alleged in the pleading.

"(b) The person who filed the pleading does not have the legal capacity to sue.

"(c) There is another action pending between the same parties on the same cause of action.

"(d) There is a defect or misjoinder of parties.

"(e) The pleading does not state facts sufficient to constitute a cause of action.

"(f) The pleading is uncertain. As used in this subdivision, "uncertain" includes ambiguous and unintelligible.

"(g) In an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct.

"(h) No certificate was filed as required by Section 411.35." (Code Civ. Proc., § 430.10.)

"[A] Court must treat a demurrer as admitting all material facts properly pleaded, it does not, however, assume the truth of contentions, deductions or conclusions of law." (Travelers Indem. Co. of Connecticut v. Navigators Specialty Ins. Co. (2021) 70 Cal.App.5th 341, 358, citing Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 967.)

"To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the Plaintiff's proof need not be alleged." (C.A. v. William S. Hart Union High School Dist. (2012)

53 Cal.4th 861, 872.)

Public Entity Liability

The State is a public entity. “ ‘Public entity’ ” includes the state, the Regents of the University of California, the Trustees of the California State University and the California State University, a county, city, district, public authority, public agency, and any other political subdivision or public corporation in the State.” (Gov. Code, § 811.2.)

With respect to a public entity, and their employees, there are specific pleading requirements. A public entity has no liability for any injury to any person except as provided by statute. (Gov. Code, § 815; Tuthill v. City of San Buenaventura (2014) 223 Cal.App.4th 1081, 1089.) Claims based upon statutory liability cannot be generally alleged, but must be particularly pled to allege facts demonstrating the right to recover under the statute. (Covenant Care, Inc. v. Superior Court (2004) 32 Cal.4th 771, 790.)

“[I]n California all government tort liability is dependent on the existence of an authorizing statute or “ ‘enactment’ ” [citations], and to state a cause of action every fact essential to the existence of statutory liability must be pleaded with particularity, including the existence of a statutory duty. [Citation.] Duty cannot be alleged simply by stating “ ‘Defendant had a duty under the law’ ”; that is a conclusion of law, not an allegation of fact. The facts showing the existence of the claimed duty must be alleged. [Citations.] Since the duty of a governmental agency can only be created by statute or “ ‘enactment,’ ” the statute or “ ‘enactment’ ” claimed to establish the duty must at the very least be identified.” (Searcy v. Hemet Unified School Dist. (1986) 177 Cal.App.3d 792, 802.)

The statutory authorization, under which Plaintiff brings the SAC, is Government Code section 815.2. The code section reads:

“(a) A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative.

“(b) Except as otherwise provided by statute, a public entity is not liable for an injury resulting from an act or omission of an employee of the public entity where the employee is immune from liability.”

As it did with respect to its first demurrer, the State argues that it is immune from liability for Plaintiff’s injuries pursuant to Government Code section 831.4, subdivision (b).

Trail Immunity

“ ‘A public entity is generally liable for an injury caused by a dangerous condition of its property if the Plaintiff establishes that the property was in a dangerous condition at the time of the injury and the public entity had actual or constructive notice of the dangerous condition.’ ” [Citation.] However, the recreational trail immunity statute, [Government Code] section 831.4, provides that a public entity “ ‘is not liable for an injury caused by a condition of’ ” the following: “ ‘(a) Any unpaved road which provides access to fishing, hunting, camping, hiking, riding, including animal and all types of vehicular riding, water sports, recreational or scenic areas’ ”; or “ ‘(b) Any trail used for the above purposes.’ ” (§ 831.4, subds. (a) & (b).) “ ‘[S]ubdivisions (a) and (b) should be read together such that immunity attaches to trails providing access to recreational activities as well as to trails on which those recreational activities take place.’ ” [Citation.]” (Helm v. City of Los Angeles (2024) 101 Cal.App.5th 1219, 1226 (Helm).)

“The words “ ‘trail’ ” and “ ‘path’ ” are synonymous. (Rodale, The Synonym Finder (1978) Rodale Press, Inc., p. 1249.) Webster’s Collegiate Dictionary (10th ed.1995) at page 1251 defines a trail as “ ‘a marked or established path or route. . . .’ ”

(Italics added.) We hold that the Path qualifies as a “trail” under subdivision (b).” (Carroll v. County of Los Angeles (1997) 60 Cal.App.4th 606, 609, (Carroll).)

“Subdivision (a) [of Government Code section 831.4] speaks of unpaved roads, while subdivision (c) refers to paved trails. It is therefore logical to interpret subdivision (b)’s reference to “any trail” to mean just that, i.e., any trail, whether paved or unpaved.” (Carroll, supra, 60 Cal.App.4th at p. 609.)

“The words of a statute are to be accorded their usual, ordinary import. Moreover, they are to be construed in context, keeping in mind the nature and purpose of the statute in which they appear, and the various parts of a statute are to be harmonized by considering the particular clause or section in the context of the statutory framework as a whole. [Citation.] Unlike subdivision (a) of section 831.4, which refers specifically to “unpaved” roads, and subdivision (c), which refers specifically to “paved” trails, paths, etc., subdivision (b) refers to “[a]ny” trail. The logical inference of the all-encompassing “any” in subdivision (b), particularly in relationship to the limiting adjectives in its sister subdivisions, is that the nature of the trail’s surface is irrelevant to questions of immunity.” (Armenio v. County of San Mateo (1994) 28 Cal.App.4th 413, 418.)

“ ‘ ‘ ‘The plainly stated purpose of immunity for recreational activities on public land is to encourage public entities to open their property for public recreational use, because ‘the burden and expense of putting such property in a safe condition and the expense of defending claims for injuries would probably cause many public entities to close such areas to public use.’ ” ’ ” [Citation.] “ ‘Trail immunity applies to all manner of defects in the trail’s condition.’ ” ([Citation]; see Amberger-Warren v. City of Piedmont (2006) 143 Cal.App.4th 1074, 1084 (Amberger-Warren) [“ ‘It is well established that the immunity covers negligent maintenance of a trail’ ”]; Treweek v. City of Napa (2000) 85 Cal.App.4th 221, 227 [“ ‘ ‘ ‘It is . . . clear that the state is absolutely immune from liability for injuries caused by a physical defect of a trail’ ” ’ ”].) (Helm, supra, 101 Cal.App.5th at p. 1226.)

By way of his opposition, Plaintiff does not make any cogent argument, or provide any authority, for his position that the walkway is not a trail. Pursuant to every description of what constitutes a “trail”, contained in the Case Law, the walkway is unquestionably a recreational trail. The SAC clearly establishes this as well by alleging several times that the trail is used to access the beach from the parking lot.

Plaintiff’s argument regarding not “recreating” is, as was explained in the ruling on the demurrer to the FAC, without merit. Government Code section 831.4 does not create any exception for a volunteer. Courts have consistently found that persons utilizing recreational trails for purposes other than recreation are barred from bringing actions against public entities for any defects in the condition of trails and walkways. (see Montenegro v. City of Bradbury (2013) 215 Cal.App.4th 924; Arvizu v. City of Pasadena (2018) 21 Cal.App.5th 760; Burgueno v. Regents of University of California (2015) 243 Cal.App.4th 1052.)

To the extent that Plaintiff argues that the trail was improperly maintained:

“ ‘[T]o fulfill its purpose, trail immunity must extend to claims arising from the design of a trail, as well as its maintenance.’ ” [Citations.] “ ‘[L]ocation, no less than design, is an integral feature of a trail, and both must be immunized for the same reasons.’ ” [Citation.] This immunity is absolute. [Citation.]” (Leyva v. Crockett & Co., Inc. (2017) 7 Cal.App.5th 1105, 1109, italics added.)

The demurrer will be sustained. Plaintiff has had three opportunities to plead facts sufficient to constitute a cause of action and has not provided any persuasive argument or facts that would tend to show there is any possibility of amending the complaint further to bring his claims outside of the trail immunity that protects the State from liability. As such, Plaintiff will not be given leave to amend.

Judges

Judge Thomas Anderle

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